IN THE COURT OF CIVIL JUDGE (SENIOR DIVISION), KUSHINAGAR AT PADRAUNA, UTTAR PRADESH

123/26

GULAM ANSARI VERSUS ABID ANSARI AND OTHERS

IN THE MATTER OF:

Gulam Ansari ... Plaintiff

VERSUS

Abid Ansari, Ishrafil Ansari and Sakil Ansari ... Defendant

APPLICATION ON BEHALF OF THE PLAINTIFF FOR ISSUANCE OF SUMMONS TO THE DEFENDANT

Order V, Code of Civil Procedure, 1908

MOST RESPECTFULLY SHOWETH:

Defendant's address for service: All Residents of Village – Batrauli, Post Office – Kubersthan, Police Station – Kubersthan, District – Kushinagar, Uttar Pradesh – 274304.

FACTUAL BACKGROUND

1. The suit for recovery of possession of ancestral land (Survey No. 112/1) is pending before the Civil Judge (Senior Division), Kushinagar at Padrauna, case No. 123/26.

2. Plaintiff Gulam Ansari, son of the late Jumman Ansari, resides at Village Batrauli, Post Office Kubersthan, Police Station Kubersthan, District Kushinagar, Uttar Pradesh – 274304.

3. Defendants Abid Ansari, Ishrafil Ansari and Sakil Ansari, also sons of the late Jumman Ansari, reside at the same address in Village Batrauli, Kushinagar.

4. Plaintiff migrated to metropolitan cities for employment and was absent from the village when the defendants allegedly partitioned his share of the ancestral land on the pretext of a debt.

5. No summons have been issued to the defendants to date.

GROUNDS

1. The plaintiff has not knowingly or voluntarily abandoned any lawful share in the suit property merely by residing outside the village for employment.

2. Any alleged relinquishment, partition or transfer of the plaintiff's share must be established by admissible evidence and in accordance with applicable law.

3. The suit is instituted within the period of limitation prescribed under the Limitation Act, 1963.

DOCUMENTS RELIED ON

- Copy of the plaint and annexures
- DETAILS OF PERSONS IN ILLEGAL POSSESSION_01.pdf

PRAYER

Most respectfully showeth that the plaintiff prays that this Hon'ble Court may be pleased to issue summons to the defendants Abid Ansari, Ishrafil Ansari and Sakil Ansari at the address stated above, through the mode of service prescribed under Order V of the Code of Civil Procedure, 1908, and pass such further order as may be deemed necessary.

AND FOR THIS ACT OF KINDNESS, THE PLAINTIFF AS IN DUTY BOUND SHALL EVER PRAY.

Place: Kushinagar, Uttar Pradesh
Date: 2026-10-21

Plaintiff
Through Counsel
Parvez Akhtar
Enrollment No.: UP 85658/2020